

23NWCV01381 23NWCV01381

County: los-angeles

Division: Civil Law and Motion

Department: SED

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Case Number: 23NWCV01381 Hearing Date: June 23, 2026 Dept: SED

WINSON INTERNATIONAL LLC V. HUMBERTO A. LINARES, ET AL.

CASE NO.: 23NWCV01381

HEARING: 06/23/2026 @ 9:30 a.m.

#13

TENTATIVE ORDER

Plaintiff Winson International LLC's unopposed motion for attorney's

fees is GRANTED.

Defendants Humberto A. Linares and Gabriela Mora Castillo are ordered

to pay the awarded amount within 90 days of this Order.

Moving party to give notice.

Plaintiff Winson International LLC (Plaintiff) moves for an order

awarding attorneys' fees in the amount of \$87,685.00.

Background

On November 18, 2025, Plaintiff filed the operative Third Amended

Complaint (TAC) against Defendants Humberto A. Linares and Gabriela Mora

Castillo, and Does 1 through 25, inclusive (collectively, Defendants),

asserting five causes of action: (1) Breach of Contract; (2) Intentional

Interference with Contractual Relations; (3) Quiet Title; (4) Reformation of

Grant Deed; and (5) Breach of Implied Covenant of Good Faith and Fair Dealing.

On March 5, 2026, Plaintiff requested a default judgment quieting

title, reforming grant deed, and reserving attorney's fees against Defendants. The Court granted the default judgment that same day.

On March 6, 2026. Plaintiff filed a notice of entry of judgment.

On May 6, 2026, Plaintiff filed the instant motion for attorney's fees.

To date, no opposition was filed.

Legal Standard

A prevailing party in a lawsuit includes "the party with a net monetary

recovery." (Code of Civ. Proc.

1032(a)(4).)

A prevailing party is entitled to recover costs, including attorney's

fees, as a matter of right. (See Code

Civ. Proc. §§ 1032(a)(4), 1032(b), 1033.5.)

Furthermore, attorney's fees are allowable as costs when authorized by

contract, statute, or law. (Code Civ.

Proc. § 1033.5(a)(10).)

Civil Code § 1717 states in pertinent part: “[i]n any action on a contract, where the contract specifically provides that attorney’s fees and costs, which are incurred to enforce that contract, shall be awarded either to one of the parties or to the prevailing party, then the party who is determined to be the party prevailing on the contract, whether he or she is the party specified in the contract or not, shall be entitled to reasonable attorney’s fees in addition to other costs.” (Civ. Code, § 1717(a)).

Timeliness

Judgment was entered on March 5, 2026, and Plaintiff served a Notice of Entry of Judgment on March 6, 2026. (Ip Decl., ¶¶ 2-3.) Plaintiff contends that the deadline to file the motion was May 5, 2026, and that the motion was timely served and tendered for filing on that date. (Id. at ¶¶ 4-5.) Plaintiff further states that the Court initially rejected the filing on May 6, 2026 due to clerical e-filing issues relating to the filing code and exhibit Bates-stamping, after which Plaintiff promptly corrected the deficiencies and re-submitted the motion. (Id. at ¶¶ 6-9.) Although the Motion was re-filed on May 6, 2026, one day after the filing deadline, the Court finds good cause to extend the filing deadline

pursuant to California Rules of Court, rule 3.1702(d). Plaintiff timely served the Motion and tendered it for electronic filing on May 5, 2026. The filing was rejected due to non-substantive clerical defects, which Plaintiff promptly corrected and re-submitted the following day. Further, Defendants suffer no apparent prejudice from the one-day delay.

Accordingly, the Court exercises its discretion to deem the Motion timely and will consider the Motion on its merits.

Analysis

Plaintiff moves for an award of attorney's fees in the amount of \$87,685.00. (Notice pp. 2-3.) Plaintiff contends that it is entitled to recover attorney's fees pursuant to Paragraph 25 of the parties' Residential Purchase Agreement and Civil Code section 1717. (Motion p. 4; Ip Decl., ¶ 4, Ex. 3.)

Plaintiff further contends that the March 5, 2026 Default Judgment

Quieting Title, Reforming Grant Deed, and Reserving Attorney Fees already

established its entitlement to contractual attorney's fees. (Motion pp. 4-6.) Specifically, the Judgment found that

Plaintiff is the prevailing party within the meaning of Code of Civil Procedure

section 1032 and Civil Code section 1717, and that Plaintiff prevailed on a

contract providing for attorney's fees within the meaning of Civil Code section

1717 and Paragraph 25 of the parties' Residential Purchase Agreement. (Id. at p. 5; Ip Decl., ¶ 2, Ex. 1.) The Judgment further reserved jurisdiction to

award reasonable attorney's fees against Defendants, jointly and severally,

upon a post-judgment noticed motion supported by a declaration, memorandum of attorney's fees, and itemized billing records. (Ip Decl., ¶ 2, Ex. 1.)

Plaintiff seeks a lodestar award based on 379.9 hours of attorney, law clerk, and paralegal work at hourly rates ranging from \$75.00 to \$595.00, resulting in a lodestar of \$87,685.00. (Motion

p. 7.) Plaintiff contends that the

hourly rates are reasonable and consistent with rates charged in the Los

Angeles legal market for attorneys and staff handling comparable real-property and contract litigation. (Id. at

pp. 7-8; Ip Decl., ¶¶ 4-6, Exs. 4-5.) Plaintiff

further argues that the fees were reasonably incurred in litigating the matter

through multiple amended pleadings, demurrers, motions to strike, motions to

set aside default, discovery disputes, settlement negotiations involving

multiple parties, default-judgment proceedings, and preparation of the judgment

quieting title and reforming the deed. (Ibid.)

No opposition has been filed by Defendant to contest Plaintiff's

arguments.

In determining the reasonable amount of attorney's fees, the Court

considers the complexity of the tasks performed, the number of hours expended,

the hourly rates requested, and other relevant lodestar factors. Here, Plaintiff provided itemized billing

records identifying the date each task was performed, the individual performing the work, the applicable hourly rate, the time spent, and a description of the services rendered. (Ip Decl., ¶ 7, Ex.

5.) The records reflect work performed throughout the litigation, including multiple amended pleadings, motion practice, discovery, settlement efforts, default proceedings, and issues involving quiet title and reformation of a recorded deed. (Ibid.)

Although the total amount of fees requested is significant given that the matter ultimately proceeded by default judgment, the Court finds the requested amount reasonable in light of the procedural history of the case. The litigation spanned approximately three years and involved more than a routine default proceeding, including disputed pleadings, discovery, settlement efforts, issues relating to title and deed reformation, and efforts necessary to obtain entry of judgment. Having reviewed counsel's declaration and the submitted billing records, the Court finds that the hours expended and rates charged are reasonable and that the time claimed is not excessive, duplicative, or unnecessary.

Additionally, no opposition has been filed challenging the requested rates, hours, or specific billing entries.

Plaintiff also requests additional attorney's fees incurred in preparing a reply and appearing at the hearing, in an amount to be established

by supplemental declaration. However, no

reply was filed. Accordingly, the Court

declines to award any additional attorney's fees beyond the lodestar amount

requested in the Motion.

Accordingly, the Court awards Plaintiff attorney's fees in the amount

of \$87,685.00.

Conclusion

Plaintiff Winson International LLC's unopposed motion for attorney's

fees is GRANTED.

Defendants Humberto A. Linares and Gabriela Mora Castillo are ordered

to pay the awarded amount within 90 days of this Order.